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Fifth Series

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CONDUCTED BY R. CHAMBERS (SECUNDUS)

No. 7.—VOL. I.

SATURDAY, FEBRUARY 16, 1884.

PRICE 1½d.

## HOW LIFE-OFFICES PAY THEIR DEATH-CLAIMS.

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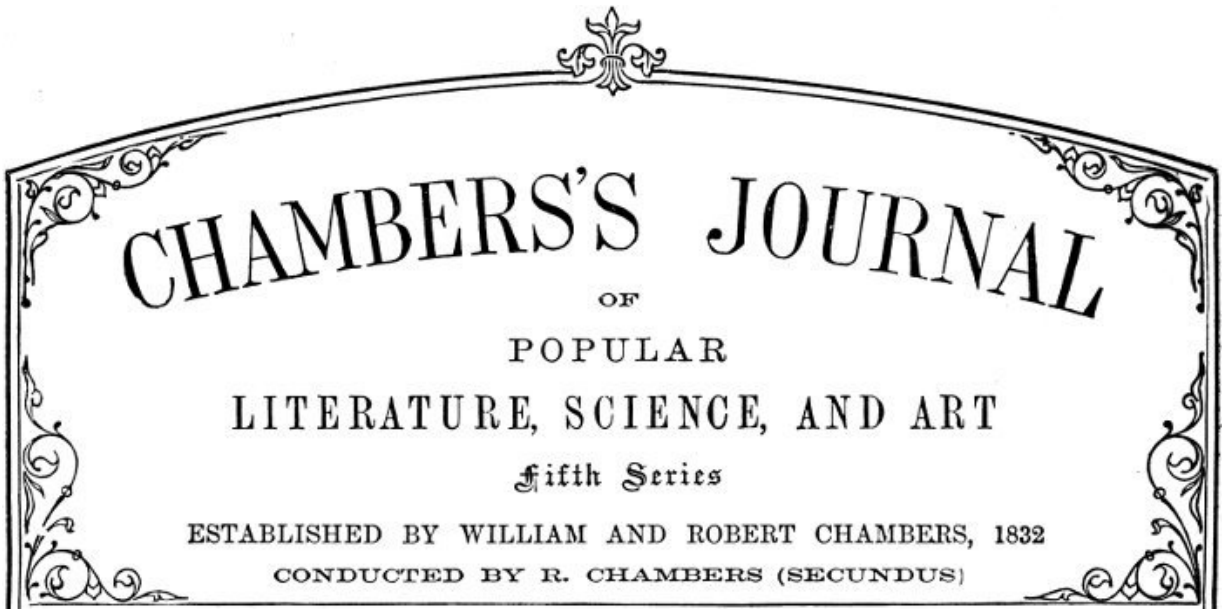
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During the last few years, the interval between death and the payment of claims has been greatly shortened; and most of the enterprising new offices have made it a point to offer settlement of the claims arising from death with the least possible delay. This is as it should be; and many of the older and more conservative offices have seen it to be to their advantage to abandon the three or six months' interval which usually had to elapse before payment of the sum assured was made. When we consider what prompt settlement in many cases implies, this acceleration of payment is a movement which will be much appreciated, and, like every other policy of the kind, will eventually benefit those offices adopting it. It is plain that when the assurance money is the chief resource of the bereaved family,



early payment by the office is of immense advantage, enabling immediate steps to be taken in some measure to supply the place of the bread-winner; and even in cases where there is other property left, the early—almost immediate—possession of ready-money must be a great boon, often enabling other effects to be disposed of at leisure, and without the loss which frequently attends a forced realisation. We observe, therefore, with satisfaction that a large number of offices now pay the sums assured either on proof of death and title, or, what is practically the same, in a month after proof of death. Not one of the seventeen Scottish offices, for instance, now retains the old style of paying six months after death. Two of the Scottish offices pay on proof of death and title; four, one month after proof of death; two, three months after date of death; and nine, three months after proof of death. Many of the English offices also have within the last few years agreed to pay their claims sooner than heretofore. This acceleration of the payment of claims has long been a desired reform, and will no doubt result in an increased flow of business to those offices which have adopted it.

In order that full advantage may be taken of this concession, co-operation on the part of the assured is needed. For instance, there is one form of ‘self-help’ which could be practised by all—namely, the production of evidence of age. When proof has not been produced to the office and admitted, there is often delay caused in getting payment. In many cases, there is among the nearest friends an astonishing absence of knowledge as to the place and date of birth of their relatives, and therefore the proper person to clear up such matters is the assured himself. If born in England after July 1, 1837, an extract from the general Registry at Somerset House, London, can be got for a small fee. At Somerset House, there are also preserved the non-parochial registers of baptisms or births kept by various bodies and congregations of Nonconformists prior to the general system of registration which commenced at the above-mentioned date. In Ireland, registration commenced only in 1863. In Scotland, the registers—with the exception of those for the period from January 1, 1820 to January 1, 1855, which are in the possession of the local registrars—are preserved at the Register House in Edinburgh, and an extract can be got on application; or the assurance office can, if requested, take an extract from the register there on payment of one shilling. Seeing that, as a rule, the correct date of birth can easily be certified, every policy-holder should do so without undue delay, and have a marking made by the office on his policy that ‘Age is admitted.’ A mistake

of a year or two is easily made, and although the deficiency in annual premium may be small, the operation of compound interest, which is so essential a part of the system of life-assurance, causes the accumulation of these little sums to assume sometimes a startling appearance, when it comes to be deducted at settlement from the sum assured; and it is unpleasant for all concerned that such deduction should have to be inflicted. There is not now the fear which is said to have existed in Henry VIII.'s time, that a government register of births might be used for the purpose of a poll-tax; and as the operation of our registration system goes on, the difficulty in getting proof of age will be reduced to a minimum. When no official proof of age can be produced, offices, as a rule, co-operate with those interested, and admit the age when they have been satisfied that reasonable endeavour has been made to establish the correct date of birth. In all cases, it is evident how desirable it is that the assured should themselves see to this.

When death has occurred—that is, when, technically speaking, the policy has become a claim—intimation should be given to the office at once, which will issue two simple and easily understood forms, one to be filled up and signed by the doctor who attended the deceased in his last illness; and the other by a friend who has known the deceased for some time, and who can certify to his identity. It is, of course, impossible to produce such certificates in cases where men whose lives were assured are drowned or otherwise lost; but after reasonable delay, the offices admit and pay such claims on the best circumstantial proof of death that can be obtained. In ordinary cases, the medical certificate not only vouches for the facts, that such and such a person died at such and such a place on a certain date, but it also states the cause of death, which is of value to the offices, as enabling them to elicit certain facts necessary for future statistical inquiries.

The party who fills up the certificate of identity must be a person of respectability, to whom the deceased was well known, and who is capable of certifying that the deceased is the same person whose life was assured under the policy of assurance which is being claimed upon. It often happens that the assured has changed both his occupation and address since he assured, and of course the office must be certain that they have the right man before paying any claim. Some offices are more particular than others, and require, in addition to the above two certificates, a copy of the entry of death in the register, certified by the registrar for the district.

The forms should be returned as early as possible to the office, so as to be submitted to the directors at their first weekly meeting. The claim is then admitted, and the office intimates on what day payment will be made, provided the title of the party who is to receive the money is in order and produced to the office.

It is not going wholly outside of our present purpose to repeat the oft-given advice, that every one possessed of a policy or other bequeathable property should make a will. In the amusing episode in the *Posthumous Papers of the Pickwick Club*, when the will of the landlady of the *Marquis of Granby* has been discovered in ‘the little black teapot on the top shelf of the bar closet,’ the elder Weller, who was named sole executor, says to his son: ‘I s’pose, Samivel, as it’s all right and satisfactory to you and me, as is the only parties interested, ve may as vell put this bit o’ paper [the will] in the fire.’ Knowledge is now too generally diffused to endanger the safe custody of so important a document; but the public require to be reminded of the necessity of preserving all deeds (if any) by which policies have been assigned and re-assigned, as these will be called for by the office, before any payment is made. Between the dates of admission of claim and time of payment, some form of title must be produced, with the view of enabling the Company to prepare the form of discharge to be signed by the persons entitled to receive the money. The discharges are adjusted by the Companies free of expense to claimants, except in the case of insufficient or complicated titles, where special legal assistance is necessary.<sup>[1]</sup>

No more *popular* argument in favour of life-assurance could be given than the manner in which our Companies discharge their obligations. Every year, more than ten million pounds sterling are dispensed throughout the land from these beneficent institutions to sorrowing widows in their time of need, and to helpless children bereaved of a father’s care, whose love thus found a way to provide for them when he was called away.

## BY MEAD AND STREAM.

### CHAPTER XI.—‘STRICTLY CONFIDENTIAL.’

THAT was the best news Martin Wrentham had heard for a long time. Gribble & Co. were commission agents, and undertook any kind of business which promised a profit. Shipping, stocks, landed estates and house property; cargoes of wine, of tea, and of wool, were all equally welcome to the best attention of Gribble & Co. Mr Wrentham was the sole partner and representative of this impartial firm. There never had been a Gribble or a Co.; but there was a highly respectable and old established firm known as Gribble, Hastings, & Co., who had nothing to do with the house in Golden Alley. There were, however, people in the colonies and on the continent who made mistakes, and entered into business relations with Mr Wrentham under the impression that they were dealing with the firm whose designation was so nearly the same as the one under which he traded.

The mistake was of course discovered by some, and rectified as soon as possible; but still there were others who continued to blunder, and Wrentham appeared to prosper. There were envious City men who said that he made more out of the betting ring than out of his professed business; and he certainly was well known in sporting circles. He frequently had the ‘straight tip’ for the Derby, the Oaks, Ascot, the St Leger, and other important racing events of the year. This information he was good-naturedly ready to impart to his friends, claiming only what he called a ‘comfortable’ percentage on the winnings, whilst he had no share in the losses.

It had long been his ambition to open an account with the great house of Hadleigh & Co. With this object in view, he had taken infinite pains to ingratiate himself with Mr Hadleigh, and succeeded so far that he became an occasional guest at the Manor: but no business came of it. He had courted the society of Coutts Hadleigh, flattered him, spent time and money in amusing him, endured his cynical jokes, and had even given him ‘straight tips’ without seeking a commission: still no business came of it.

But he did not give up hope. He was cool, patient, and good-humoured, and his perseverance was rewarded. See, here is the chief partner of the firm come to him at last with the announcement that his visit was on 'important business.'

'Upon my word, Mr Hadleigh, you give me such an agreeable surprise, that I can only say we shall have pleasure in doing the utmost in our power to serve you satisfactorily.'

Wrentham was always frank, always eager to say the thing which he supposed would please his listener most. If he was pleased, he said so, and showed it; if displeased, he showed it, although he did not always say so. But then he was very seldom displeased; for he had the happy knack of turning the most offensive words or acts into a joke or ridicule, so that he never quarrelled with anybody—not even with the tax-collector.

'I may tell you at once,' said Mr Hadleigh in his cold way, 'that the business is entirely private at present, and has nothing to do with the firm.'

'I shall have the more pleasure in attending to it as a friend,' was the cordial reply.

'Thank you; but I give you credit for knowing enough of me to be aware that I shall not take advantage of your generosity. You have heard the saying—there is no friendship in business.'

'Happily, there are many exceptions to the rule,' said Wrentham cheerfully.

'This is not to be one of them. You are to regard the transaction as one coming to you in the ordinary course of business, but to be dealt with as a strictly confidential matter. Your clerks are to have nothing to do with it.'

There was something in his manner, calm and quiet as it was, which attracted Wrentham's attention, puzzled him, and modified the enthusiasm with which he had begun the interview.

'If you will explain, Mr Hadleigh, you will find me willing to do whatever you require, if it is possible.'

Mr Hadleigh looked steadily in the speaker's face, and the latter leaned back on his chair, as if to afford a better light for the inspection. He endured the gaze with the placid smile of one who was prepared for the closest

scrutiny into his character and motives. Apparently satisfied, Mr Hadleigh, speaking with much deliberation, proceeded:

‘I want in the first place a little information. You have been for some time doing business for Mr Austin Shield?’

The placid smile faded from the countenance of Gribble & Co., and the plural pronoun came into use again.

‘That is correct. He has intrusted us with various small commissions; but they are mere trifles, I believe, compared with those he has given to others. Indeed, I do not think he has treated us quite so liberally as he ought to have done.’

There was no irritation in the last remark: it simply implied that Mr Shield had not acted wisely. Mr Hadleigh did not appear to have observed it.

‘You are aware of his relationship to my children?’

‘Yes; and that your son, Philip, is going out to him. Lucky for your son, I should say.’

‘I do not wish him to go.’

‘Wh—at!’ The exclamation was long drawn out, and its modulations were suggestive of a rapid series of speculations, in which curiosity and doubt were more predominant than surprise.

‘I do not wish him to go,’ repeated Mr Hadleigh, each word passing his lips like the measured stroke of a funeral bell.

‘You take my breath away. Such a chance—such prospects! Shield is reported to be enormously wealthy, and he has no direct heirs.... Pardon me, Mr Hadleigh, but I must say that you would be doing the young man a serious injury if you interfered with his uncle’s wishes.’

In sickness and in sorrow there are people who feel called upon to offer you their sympathy; but there is too often a conventional ring in the expression of it which there is no mistaking, and even bare politeness in the acknowledgment of it becomes irksome. It was in this conventional way that Wrentham uttered his virtuous warning to the parent who was opposing his son’s best interests.

The parent understood, and smiled.

‘Strange as it may seem to you, Mr Wrentham, my desire is that not one of my children should be mentioned in that man’s will.’

‘Extraordinary! But you were always peculiar in your views of things. To be sure, your views generally turned out to be the right ones. Everybody in the City is aware of that. But I do not see yet how my services can be of any use to you in this matter.’

‘The service I require will not be difficult to render. You have been for some years in correspondence with Mr Shield, and you know more about his affairs than any one in London except his solicitors. I want you to tell me all that you have learned regarding his intentions concerning Philip.’

‘That is easily done. I have learned absolutely nothing.’

Wrentham was quite cheerful again as he gave this reply.

Mr Hadleigh was disappointed: he was silent and thoughtful for a few moments. Then: ‘I begin to see his purpose.’

‘I should be glad if you would enlighten me,’ said Wrentham eagerly: ‘it might be useful to me.’

‘I am quite sure it will be. But first you must give me a full explanation of his affairs, so far as you are acquainted with them, and the nature of this business which has brought him such sudden wealth, and which he is at so much pains to keep secret.’

Wrentham’s cheerfulness disappeared, and he rose uneasily.

‘I am sorry, Mr Hadleigh, that you should ask me for information which I am not at liberty to give.’

‘You mean that his business is of so much value that you cannot risk the loss of it?’

‘Of course—of course, his business is of some importance to us, although, as I have already mentioned, he has not treated us quite so liberally as we think he ought to have done. Besides, we have only a small part of his patronage.’

‘All the same you would not like to lose it?’

‘Well, not unless something better offered itself,’ replied Wrentham, recovering a degree of his jaunty manner, as he recollected that he was speaking to the head of a great firm whose influence might bring him thousands a year. It would never do to display to such a man either too much weakness or too much indifference.

‘But if that something better did not present itself, you would be sorry to lose the connection. I suppose it is necessary to tell you what my surmise is as to his intentions. He intends to establish Philip as his sole representative in England, and everything will be taken out of your hands. I may be able to help you, if you will give me the information which will put it in my power to do so.’

Wrentham walked to the window, stared at the blank wall opposite, and frowned at it.

Mr Hadleigh smiled at his evident alarm, and attempted to relieve it.

‘You need not be afraid to trust me; I am not inviting you to enter into a conspiracy against Mr Shield. I have no evil design in my inquiries.’

‘I am sure of that,’ responded Wrentham, wheeling round. Every sign of alarm had vanished from his visage. ‘But of what use could the information be to you? Giving it might do me a great deal of harm, whilst it could not serve you.’

‘Of that you cannot judge. But we need not discuss the point further at present. Take time and consider. Meanwhile, you can have no objection to do this for me—telegraph to him that you learn from me that Philip goes out to him against my will.’

‘It shall be done immediately, and I will bring you the answer myself.’

There was a tap at the door, and the clerk entered with a slip of paper which he handed to his master.

‘All right, Perkins. Shall be disengaged in a few minutes.’

As the clerk closed the door behind him, Wrentham handed the paper to his visitor, who read on it, ‘Mr Philip Hadleigh,’ and instantly rose to go.

‘Perhaps—you will excuse me—but perhaps it would be as well if you did not meet each other here at present. Here is my private door.’



‘I expect to see you this evening with the answer to the telegram,’ said Mr Hadleigh quietly as he went out.

‘You shall see me whether the answer has arrived or not.’

When he had closed the door, Wrentham stood still, unconscious, apparently, that he was resting on the handle, although it seemed as if he were half-inclined to call Mr Hadleigh back. His expression had changed to a frown at some invisible object on the floor, and his head was slightly bowed. This was his thought:

‘Have I lost a chance, or opened the way to one?... Eminently unsatisfactory, if I have not. He must have some game on.... No designs! As if he could gammon me into the notion that he was the sort of man to bother himself about other people’s affairs without good reason for it. A hundred to one on *that* event. But if Shield does mean to take everything out of my hands’——

He frowned still more darkly at the invisible object on the floor, and the speculation ended in a chaos of disagreeable reflections. With a quick jerk of the head he roused himself.

‘We’ll see,’ he muttered as he advanced to the table and touched a hand-bell twice.

The habitual smile had returned to his face when Philip entered the room.

‘I shall not keep you many minutes to-day, Mr Wrentham. But I suppose you will have to give me an hour or so on the earliest date you can appoint.’

‘It will be a pleasure to me whatever it may be to you. I suppose it is business. I shall make it as easy for you as I can. What is it?’

‘I have just got this from Hawkins and Jackson, which, they tell me, my uncle inclosed to them with instructions that they were to see that I gave personal attention to the matter.’

Wrentham read the note, placed it in a clip bearing the word ‘Immediate’ in large capitals, and looked up again.

‘Your uncle might have sent this to me direct—I should have liked it better; but he has a curious way of doing things. You are to have a full statement of

my accounts with him, and it is to be duly audited by a professional accountant. This looks as if he intended to close the account altogether.'

'I hope not.'

'Well, the statement will be ready for you on Wednesday next week, and you shall have every assistance and explanation you may require from me.'

'Thank you. At what hour shall I call?'

'Ten o'clock. I expect you will have a long day of it.'

'We cannot help that, I suppose, and I need not take up more of your time at present.'

'Are you in a hurry? Because I am going out to have some luncheon, and you might join me.'

The invitation was given so cordially, that Philip could not decline, and they went out by the private door together. At the mouth of the alley they were passed by a smart little man with thin clean-shaved face, wearing a soft felt hat, a loose black frock-coat, and gray tweed trousers. He carried in his hand a folding trestle and a well-filled green bag, and under his arm was a small circular table top covered with green baize.

He lifted his hat to Philip, who acknowledged the salute with a pleasant nod. Wrentham's attention was attracted by something in another direction, and the little man went swiftly on his way.

'That's the juggler Bob Tuppit,' said Philip to his companion. 'Haven't you seen him down our way? I suppose he has just had a successful performance in some quiet court, he looks so cheery. Clever fellow; works ten and twelve hours a day, and tells me he makes a decent income out of it.'

'Is he an acquaintance of yours?' inquired Wrentham, somewhat drily.

'I have had several chats with him, and found him a most interesting and intelligent fellow.'

'Has he told you anything about his family?'

'Nothing more than that he is married; has a troop of children, and a comfortable home.'

‘Ah, that is not like the ordinary tramp. But I wouldn’t cultivate his acquaintance, if I were you. No doubt he told you all about his birth and parentage, and got a sovereign out of you on the strength of being a poor orphan.’

‘He told me that he had been born and brought up in London; but he has travelled over the whole country in his professional capacity. He speaks of his juggling as a “profession.” He is an orphan, as you guessed; but he has a brother somewhere.’

‘And what might his profession be?’ said Wrentham with a quick side-glance at Philip.

‘I don’t know. Tuppit is shy of talking about him; and from his sorrowful way of mentioning the fact that he had a brother, I came to the conclusion that the fellow was in prison, or something of that sort. So I did not put any disagreeable questions.’

They had entered the dining-room of the Gog and Magog Club by this time; and amidst the clatter of plates and knives and forks, and the loud hum of voices, Wrentham pointed to the bill of fare, which was hung up beside the clerk’s desk, and said hastily: ‘What are you to have?’

Mr Hadleigh had been much more disappointed by the result of his interview with Wrentham than he had allowed to appear. He had gone to him with the vague hope that he might learn something about Austin Shield, which should give him an excuse for making another appeal to Madge. He had learned nothing. There was, however, a probability that when his objection was made known to Shield, the latter would himself withdraw the invitation he had sent to Philip.

In the evening, Wrentham presented himself at the Manor. No answer to the telegram had yet arrived: the conversation in the library occupied an hour notwithstanding. Shortly after noon on the following day, Wrentham brought the expected answer to Mr Hadleigh, who was waiting for it in his private room in the office of his firm.

*‘My sister’s son must decide for himself.’*

‘It is like the man,’ muttered Mr Hadleigh, as he tore up the paper. ‘Now, you can make your choice—his business or mine.’

‘I shall give you an answer in half an hour.’

Wrentham returned to his office, and entered it by the private door. He took a half-crown from his pocket and balanced it on his forefinger and thumb. He gazed at it steadily for a moment, then tossed it up.

‘Heads for Hadleigh—tails for Shield and sudden death.... Heads it is, and Hadleigh’s my man.’

He picked up the coin, seated himself at his writing-table, and proceeded to communicate his decision to Mr Hadleigh with as much gravity as if he had arrived at it after serious deliberation.

# **FAMILIAR SKETCHES OF ENGLISH LAW.**

**BY AN EXPERIENCED PRACTITIONER.**

IT is not necessary for the writer of these sketches to declare which branch of the legal profession he belongs to, but it appears desirable to explain the purpose for which they are written. The laws of our land are so numerous and complicated, and derived from so many sources, that it is impossible for any human mind to make itself thoroughly acquainted with all their multifarious details, however familiar the general principles of the law may have become. And yet every one of the Queen's subjects is responsible for any breach of the law which he or she may commit. The reason of this is obvious: a law which might be broken with impunity on the excuse that the law-breaker was ignorant of its existence, would be an absurdity. If laws are to be of any use, they must be universally binding, on the learned and unlearned, within the sphere of their operation. In the course of a long, extensive, and varied professional experience, we have often been astonished to find profound ignorance of legal principles and responsibilities in unexpected quarters; and it has occurred to us that a few familiar articles on the laws which affect the different relationships of social life might be both interesting and useful. Many of the principles which affect persons in the characters of husband and wife, parent and child, master and servant, and so forth, are easily understood, if explained in simple language and free from technicalities.

In so doing, we have no intention to interfere with the proper province of the solicitor or the barrister. The law has in many respects been much simplified during the present century; but still the proverb remains true, 'He who is his own lawyer has a fool for his client.' In buying a house, the title must be investigated by one who has acquired an accurate knowledge of the law of real property, or a fatal flaw in the title may deprive the purchaser of that for which he has paid. Home-made wills, unless of the very simplest description, lead in many cases to costly and vexatious litigation after the death of the testator. And in actions and other legal proceedings, where the rights of the parties depend upon the application of established legal

principles to new combinations of facts which are themselves doubtful and capable of being considered from opposite points of view, the necessity for professional assistance is too obvious to require comment.

## **I. MARRIAGES; SETTLEMENTS; AND BREACHES OF PROMISE TO MARRY.**

The contract of marriage lies at the foundation of our social system; and therefore we select it and other matters incidentally relating thereto for explanation and comment in the first instance, reserving for a future paper the law of *Scotch* marriages, as apart from that which now holds good south of the Border; but noting in the meantime, that prior to 25th March 1754, when Lord Hardwick's Act came into operation, the theory of the law in both countries was, that the consent of a free and capable man and woman, to become husband and wife constituted marriage, if proved by credible evidence. But in England, a marriage by mere words of consent did not confer all the rights consequent on a marriage duly solemnised. Since 1754, the English law has required definite technicalities of evidence, which, however, have been much restricted in their scope for injustice.

In considering the first part of our subject, 'Who may marry', it will be most convenient to deal with the question negatively; and when we have seen who must not marry, it must be understood that persons not coming within any of the categories specified are at liberty to enter into the legal contract of matrimony.

Foremost among the disabilities is insufficient age. In this respect the law is extremely indulgent, fixing the age for a male at fourteen, and for a female at twelve years. But there is a qualified disability beyond those ages: a person who has not been previously married, and is under the age of twenty-one years—technically called an infant or minor—is not allowed to marry without the consent of his or her parent or guardian. The consent of the father is required if living; after his death, the consent of the guardian appointed by his will, or otherwise lawfully appointed; or if none, then of the mother if still a widow. If the mother be married, then a guardian may be appointed by the High Court of Justice. When the minor is a Ward of Court, any person marrying him or her without the consent of the Court—which will only be granted on a proper settlement being made—may be

imprisoned for contempt, and will only be released, after longer or shorter detention at the discretion of the Court, on condition of paying all costs, and settling the whole of the ward's property as the Court may direct, the offender being usually excluded from any benefit therefrom. A lady of full age was recently sent to prison for marrying an infant Ward of Court without consent; and there have been numerous instances of gentlemen being punished in the same way. Nullity of the marriage is not now the result of this disability; but the man who procures a license by affirming that he is of full age when he is not, or that the necessary consent has been obtained when it has not, may be punished both civilly and criminally.

Another disability is want of sanity. It is not to be understood that weak-minded people must not marry; they can, and do in considerable numbers. But if a person who is a lunatic go through the form of marriage, except during a lucid interval, the marriage is void. This objection to the validity of a marriage does not often occur; but sometimes the question whether a man was lunatic or of sound mind when married is difficult to determine, but most likely to be settled in favour of his sanity, unless there was manifestly some fraudulent or sordid motive for the marriage.

Nearness of relationship, either by birth or marriage, is another disability. First-cousins and all persons more distantly related, may lawfully intermarry. But ancestors and descendants in the direct line are prohibited; as are also brothers and sisters, uncles and nieces, aunts and nephews. We will not here enter into any controversy as to the expediency of the law which prohibits the marriage of a widower with the sister or niece of his deceased wife. Before 1835, a marriage between persons whose relationship was within the prohibited degrees was not necessarily void, but voidable only during the joint lives of the parties thereto; so that if the marriage were not set aside during the lives of both parties, on the death of either of them it was treated as having been a valid marriage, and the children born thereof were legitimate to all intents and purposes. But in that year an Act of Parliament was passed declaring such marriages void in future.

The last existing disability which we shall notice is that of being married already. A married person cannot legally marry again until the first marriage is dissolved, either by death or by a judicial decree. On this subject much misapprehension exists. Many persons believe that a wife who has been deserted by her husband for seven years or upwards, without hearing from

him, or knowing whether he is alive or dead, may marry again; but this is a mistake. Such a marriage would be void if the former husband should be proved to have been alive at the time it was celebrated. Probably the delusion had its origin in the fact, that in those circumstances the woman could not be convicted of bigamy. For that purpose alone, the presumption of the husband's death after seven years of absence without any information as to his continued existence, would be recognised by the law, and might be pleaded as a defence to an indictment for bigamy.

Formerly, an engagement to any other person was a bar to marriage. If A promised to marry B, he could not marry C unless B absolved him from his promise. But this disability has long been abolished, though B might sue A for breach of promise.

The next consideration is, 'How to marry.' Excluding the Royal Marriage Act, and merely drawing attention to the fact that a marriage between two members of the Society of Friends (or Quakers) at a meeting-house, or between two Jews either at a synagogue or elsewhere, were not affected by Lord Hardwick's Act, and are not affected by the Acts which are now to be referred to, we will next briefly epitomise the most important provisions of the Marriage Act of 1823. This Act confirms the power which had long previously been enjoyed by the Archbishop of Canterbury of granting special licenses, by virtue of which parties may be married at any place specified therein and at any hour of the day. These licenses are issued at the Faculty Office, on sufficient cause being shown, and verified by affidavit. It is not very difficult to find a reason which will be satisfactory to the officials, if an applicant be willing to strain his own conscience. A special license, however, costs about thirty pounds.

An ordinary license can only be issued for solemnisation of matrimony in a parish in which one of the parties has resided for at least fifteen days previously; and if what is termed a caveat should have been entered against the granting of a license, the objection raised thereby must be disposed of by the Court, or the caveat be withdrawn, before the license can be granted.

If the marriage is to be performed in an Episcopal church by license, one of the parties must attend at the vicar-general's office, the diocesan registry, or before a surrogate—a clergyman appointed by the bishop for the purpose of granting ordinary marriage licenses—and swear that there is no impediment



of kindred or alliance, or other lawful hindrance to the marriage; and also as to the residence in the parish, and the consent of parent or guardian if necessary. It will be remembered that an infant widow or widower may remarry without such consent.

A cheaper way of being married according to the rites of the Church of England is after publication of banns. This consists in reading the names of the parties publicly on three successive Sundays at a prescribed part of the service. If both parties do not reside in one parish, the banns must be published in both their respective parishes; and if either of the parties be a minor—not having been previously married—his or her parent or guardian may publicly declare his or her dissent, and thereupon the publication of banns is void.

Marriage, whether by license or by banns, must be celebrated within three months, or the whole of the preliminaries must be gone through anew. All marriages in England must be between eight o'clock in the forenoon and twelve at noon, except marriages by special license.

Questions often arise as to the name in which a person should be married. As a general rule, the same name should be used for this as for the ordinary business of every-day life—the name by which the person is generally known. If John Jones has called himself John Robinson, and has been so called by other persons so long that his original name has been forgotten, the publication of the banns of marriage between John Jones and Mary Smith would not answer the object of the statute, for it would not inform the parishioners that the person known by them as John Robinson proposed to get married. Accuracy in name is now, however, of little importance, because the use of a false name no longer renders a marriage null, unless both the man and the woman are parties to the fraud, and so a favourite device of a hundred years ago is legally impracticable.

It is not necessary to dwell upon the form of the service used in the solemnisation of matrimony. It is, or may become, familiar to all persons interested. But perhaps it may not be universally known that the celebration of marriage without license or due publication of banns is a criminal offence, punishable by penal servitude or imprisonment with hard labour. In addition to the clergyman, there must be at least two witnesses present, and the marriage must be registered. The subject of registration of marriages

will be most conveniently considered hereafter, in conjunction with the laws relating to registration of births and deaths.

Previous to 1st March 1837, the only marriages recognised by the law in England were those above referred to; but on and since that date, it has been allowed for Nonconformist ministers to celebrate marriages in places of worship duly registered for that purpose; and for persons to be married without any religious ceremony at the office of the Superintendent Registrar of the district. If the marriage be intended to be by license, notice must be given to the Superintendent Registrar of the district in which one of the parties has resided for fifteen days previously. After an interval of one clear day, the license is issued, and the marriage can then be celebrated. In case of a marriage without license, seven days' residence before notice is sufficient; and if the parties reside in different districts, notice must be given to both Superintendent Registrars. Twenty-one days afterwards, the Superintendent Registrar issues his certificate, authorising the celebration of the marriage. When the parties do not both reside in one district, it sometimes happens that the non-resident party comes without the requisite certificate, when the wedding has to be postponed to another day.

The notice of intention to marry, whether with license or without, has a statutory declaration—equivalent to an affidavit—subjoined, to the same effect as is required before the granting of an ordinary license by a surrogate.

The form of marriage service at a Nonconformist place of worship is usually somewhat similar to that used by the Church of England; in some cases more concise, in others more diffuse. It is essential that in some part of the ceremony both parties should declare that they respectively know of no lawful impediment; and that each should take the other to be his or her lawful wedded wife or husband; and that a Registrar of Marriages should be present, in addition to the minister and two or more witnesses.

The form of marriage at the office of a Superintendent Registrar, or what may be called a purely civil marriage, is very short, being practically confined to the declarations of no impediment and the mutual taking. The Superintendent Registrar, Registrar of Marriages, and two other witnesses, must be present.

The notice of marriage without license, which is equivalent to publication of banns, has the advantage of comparative privacy; it is suspended in the register office twenty-one days, but is not otherwise published.

In some cases, marriages may be celebrated in an adjoining district in which neither of the parties resides; that is, when they belong to any body of Christians who have not a place of worship within the district of residence.

Licenses and certificates for marriage are only good for three calendar months from the date of the notice; and any person unduly celebrating a marriage under these Acts is declared to be guilty of felony.

Marriages of citizens of this country abroad are generally celebrated at the British consul's office, and had better, in cases of doubt, not be entered into without his advice, especially if one of the parties to the proposed contract be a foreigner. Indeed, even in this country it is hazardous to marry a foreigner without knowing the law of the country of which he is a citizen, and fully ascertaining that it would bind him to the proposed marriage if carried out. For example, it may happen that a Frenchman has married an Englishwoman, and that, for want of some of the consents required by the French law, he may, though bound in this country, be able to return to his own, and plead successfully that his marriage here was entirely null. Indeed, many aliens can do this and the like of it; and all Englishwomen ought to know how little the law of England can do for them in a foreign country.

'A settlement' may be made either before or after marriage. The former is properly called a Marriage Settlement; the latter, a Post-nuptial Settlement. The rules of law by which these two classes of settlements stand or fall are essentially different; the former being made for valuable consideration, are good against all the world if the property settled be the settler's own. This is reasonable; for it may be that the lady would not have accepted the gentleman if the settlement had not been made in her favour, and it would be unjust to deprive her of that for which she had bargained, as it would be impossible to place her in the same position as if the marriage had not been celebrated. A marriage settlement which comprises personal chattels is also exempted from the operation of the Bills of Sale Act, and does not require to be registered. But a post-nuptial settlement of movable goods must be registered as a bill of sale; and it is void if the settler becomes bankrupt or

files a petition for liquidation within ten years afterwards, unless the parties claiming under the settlement can prove that the settler was at the date of the settlement able to pay all his debts without resorting to the property settled. In any event, bankruptcy or liquidation within two years is fatal to a voluntary settlement—in which class post-nuptial settlements are comprised.

The trusts of a settlement vary greatly according to the nature and value of the property settled and the position of the parties. But all settlements have this in common—the property to be settled is conveyed or assigned to trustees, upon certain trusts for the benefit of the husband and wife—or one of them—and all or some one or more of their children; power being often reserved for the parents during their joint lives, or the survivor of them, to direct what share each child shall have. This power is often very useful in keeping the young people out of the hands of money-lenders. So long as the share which a young gentleman is to receive after the death of his parents remains uncertain, his reversionary interest is not a marketable security.

In England, marriage operates as a revocation of a will made previously; but in Scotland it only partially revokes the will. The reason of this difference is, that by the law of England, a testator, whether married or single, may devise and bequeath all the property of which he may be possessed at the time of his decease; while the testamentary powers of a person whose domicile is in Scotland, if he be a married man, or a widower with children, are to a certain degree restricted.

‘Breach of promise of marriage’ is good ground for an action; and the agreement to marry has one peculiarity which distinguishes it from contracts for the sale of goods of the value of ten pounds or upwards—it need not be in writing, even though the damages claimed may be ten thousand pounds or more. An infant may—by his next friend—maintain an action against an adult for breach of promise; but an adult cannot succeed in such an action against an infant, infancy being a good defence. This distinction is founded upon the principle that an infant can only be bound by his contracts if they are beneficial to him. Actions for breaches of promise, with their reams of ridiculous correspondence, and their exposure of the secrets of both parties, are generally considered amusing reading; and yet the subject has its melancholy side; and we cannot envy the feelings of the plaintiff when exposed to a severe and protracted cross-examination.

The House of Commons, at the instance of Sir F. Herschell, now Solicitor-general, a few years ago expressed an opinion adverse to the action in question. Whether that opinion will be followed by legislation on the subject, is probably only a question of time.

# TWO DAYS IN A LIFETIME.

## A STORY IN EIGHT CHAPTERS.

### CHAPTER VII.

WHEN he entered the room, Estelle looked up lazily from her cushions. 'How much longer have we to stay here, *caro mio*?' she asked with a yawn.

'The carriage will be round in half an hour.' He sat down a little wearily near the window, and turned his eyes on the pleasant scene outside. There was nothing more to be done till the carriage should arrive.

'*Bien*. We shall just have time for a little *tête-à-tête*.' She re-arranged the pillows of the couch to her liking, and smoothed down the skirts of her dress complacently. Suddenly her eye was caught by the glistening of the wedding-ring on her finger. She gave a little start, and glanced round with the air of one who has lost something. 'Where can I have mislaid them?' she asked herself under her breath. 'I must have left them either in the dining-room or up-stairs. *Quelle bêtise!*' Then after a moment: 'Ah, bah! what does it matter? He suspects nothing.' Addressing her husband, she said abruptly: 'Listen to me, Oscar Boyd. A little while ago, I offered to relieve you of my presence for ever on condition that you paid me two thousand pounds. You foolishly refused. Well, I will not be hard on you. You tell me that you are a poor man, and I will not dispute the fact. I am willing to reduce my terms. Give me one thousand pounds, and you shall never see me again after to-day.'

'I will give you nothing, and I will never see you after to-morrow.'

'I am your wife, and you are compelled to keep me.'

'But not to see you.'

'It would be better for you to give me the thousand down and get rid of me for ever.'

'You know my decision.'

‘Ah, you don’t know what you are rejecting. You will repent your folly to the last day of your life.’

His only answer was to look at his watch.

‘This, then, is your programme,’ she resumed. ‘We shall reach London to-night, and part at the terminus?’

‘That is so.’

‘And I shall meet you at noon to-morrow at a certain address, when you will be prepared to inform me what my future income will be?’

He inclined his head gravely.

‘To that meeting I shall bring with me a lawyer, in order to make sure that my interests are properly represented. As your wife, I am entitled to a certain definite proportion of your income. It will be my lawyer’s business to ascertain in the first place the amount of your income; and in the second, to what share of it I am entitled.’

‘As you please.’

There was silence for a few moments, then she said: ‘Oscar Boyd, have you asked yourself why I have come so many thousands of miles, and put myself to so much trouble and expense, in order to find you?’

‘You wanted money, and you had been told that I was a rich man.’

She clapped her hands, and laughed shrilly. ‘*Vous avez raison, Monsieur.* I compliment you on your penetration. You were not so simple-minded as to believe that it was love—love for yourself alone, *cher* Oscar—that induced me to cross that horrible ocean?’

‘No; I was not so simple-minded as to believe that.’

‘But what a disappointment for poor me to find you changed from a rich man into a poor one! And yet, hard-hearted one that you are, I don’t believe you pity me a bit. Still, life may be endurable without pity; and when you grow to be a rich man again, which you will do in a few years, you will not forget that you have a wife who will want to share your good fortune.’

As before, his only answer was to look at his watch.

‘Oh, pray be careful that we do not lose our train,’ she said with a contemptuous laugh. Then her mood changed. She got up and began to pace the room with her hands behind her back. ‘O yes, I love you, Oscar Boyd,’ she exclaimed with passionate vehemence; ‘just as dearly as you love me—no more, and no less! It was well that you did not attempt to kiss me when we met, or even to put your arm round my waist. Had you done so, I should have struck you. I hate you, *voyez vous*, as you hate me; but I have one consolation which will never leave me: I have separated you from the woman you love—from the woman who loves you! Oh, it is sweet, sweet!—Is there no champagne to be had in this house?’

It was an odd climax to her passionate outburst. But before another word could be said, there came a tap at the door, and a servant entered with a note on a salver, which he presented to Mr Boyd.

‘Who is this from?’ asked the latter as he took the note.

‘Don’t know, sir. I was told to give it you at once;’ and with that, exit the servant.

Oscar tore open the note, and not knowing the writing, the first thing he did was to look for the signature. But there was none. Then he took the note to the window to read.

Estelle, who had not stirred since the servant came in, watched him with quick-glancing, suspicious eyes.

‘He is surprised,’ she muttered to herself. ‘He cannot believe what he reads. He reads it for the second time—for the third! What can it be about? Who can it be from?’

For full five minutes Oscar Boyd stood facing the window without stirring or speaking; then he crushed the note between his fingers, put it into his pocket, and turned and confronted his wife. She was standing with one hand resting on the table, as she had been standing since the servant came in. His eyes traversed her face with a cold, critical, scrutinising glance that made her tremble in spite of herself. There was a strange mysterious change in his expression. What could it portend? He came a few steps nearer to her.

‘You tell me that you were saved from the wreck of the *Ocean Bride*. Why have you allowed all these years to elapse before making me aware of that fact?’



‘Because I knew that you no longer cared for me. Because I knew that the news of my death would be good news to you. Because I found friends who would not let me want.’

‘You used not to study my happiness so much.’

She gave a little shrug. ‘You never understood me—you never read me aright from the first.’

‘It seemed to me that there was little left to understand after that night in the garden.’

‘That night in the garden!’

‘When’——

‘Yes—when’——

‘I overheard’——

‘Overheard what?’

‘Is it possible that you can have forgotten?’

She was gazing at him with bewildered eyes. She evidently knew nothing of what her questioner referred to.

‘The letter *must* be true!’ he said to himself, with his eyes still fixed searchingly on her.

She recovered herself with an effort. ‘Why recall these painful recollections?’ she asked.

‘Why, indeed? It is folly to do so.’ On the occasional table at her elbow was a tiny gold-stoppered smelling-bottle, which she had placed there, together with her handkerchief, on entering the room. He went a step nearer and picked it up. ‘This is yours?’ he said interrogatively, as he opened the stopper and sniffed for a moment at the contents.

‘Yes, mine. Did you think it was *milady’s*?’ she asked, with a touch of her old bravado. She put out her hand, as if to take the bottle from Oscar; but next moment her hand itself was grasped by his sinewy fingers. She tried to draw it away, but could not.

‘And is this the hand, Estelle, that once on a time I used to vow was the prettiest hand in the world?’

A strangely frightened look had leapt all at once into her eyes. ‘And is it not a pretty hand still?’

‘It *is* a pretty hand. And is this the same ring that I slipped on your finger one sunny morning—ah! so many years ago?’

‘Of course it is the same ring, Oscar. As if I should ever wear another!’ It was all her trembling lips could do to syllable the words.

‘Ah, well, I suppose there is a great sameness about such articles.’

‘You hurt me, Oscar. You are cruel.’ She was trying her utmost, in a quiet way, to withdraw her hand; but she was like a child in his grasp.

‘I have no wish to be cruel, Estelle; but why do you struggle to withdraw your hand? Why do you keep it so tightly shut? What have you hidden inside it?’

‘Hidden! Nothing. What should I have to hide?’

‘That is precisely what I am desirous of ascertaining for myself,’ he said drily.

With her right hand she was now trying with all her strength to loosen his grasp on the one that he still held. ‘Wretch!’ she half screamed, with a stamp of her foot. ‘Don’t I tell you that you are hurting me!’

There was a brief struggle, not lasting longer than a few moments. Oscar’s second hand was now engaged as well as his first. Slowly but irresistibly the clenched fingers were forced open till the palm of the hand was fully exposed to view. One glance at it sufficed for his purpose. He relaxed his hold.

Estelle started back with a cry; then, with a quick instinctive movement, she hid her hands behind her. ‘So!’ she said, drawing a long deep breath. ‘You know all.’ She was glaring at him like some wild creature brought to bay, her eyes flashing with mingled fury and defiance.

‘Yes, all. Give me your hand.’

‘Never!’

‘Give me your hand, or I will ring this bell, and expose your infamy before every soul in the house.’ Then, without giving her time for any further refusal, he strode forward, and grasping her by the left wrist, he drew forth her arm to its full length. ‘Here are the letters D. R. burnt indelibly into your palm,’ he said. ‘What is the meaning of them?—You do not answer. I will answer for you.’ He let her hand drop with a gesture of contempt.

‘You are not Estelle Duplessis, the woman I made my wife at New Orleans. You are her *twin-sister*, of whom I remember having heard her speak, but whom I never saw till to-day. You are Catarina Riaz, the wife, or widow, of Don Diego Riaz, a gentleman who bred cattle in Mexico. When angered, Don Diego was not a courteous man to the ladies; at such times he treated them much after the fashion in which he treated his cattle. As an instance, when you ran away from home on a certain occasion, and were found and brought back by his servants, he caused you to be branded on the palm of your hand with the initials of his name, so that, should you ever run away again, all the world might know you were his property. Here the letters are to this day, never to be effaced. Catarina Riaz, you are a vile impostor!—I hear the noise of wheels. The carriage is at the door. Go!’

It was morning—the morning of the day following that on which the events related took place. The weather was hot and sunny, and on such a forenoon the lawn at Rosemount was a very pleasant place. In the veranda, in an ample easy-chair, sat Captain Bowood, spectacles on nose, deep in the *Times*. On the lawn itself, under the pleasant shade of an ancient elm, sat Mrs Bowood and Sir Frederick, the former busy with her crewels, the latter lazily cutting the pages of a review and skimming a paragraph here and there. To the extreme left, some distance from the others, and hidden from them by a thick clump of evergreens, sat Lady Dimsdale, making-believe to be repairing sundry rents in the frock of a large doll, which she held on her knee, but far more occupied with her own thoughts than with the work she had in hand. Close to her, and seated on a swing, suspended from a stout limb of a tree, was Master Tommy, a bright boy of nine, profoundly immersed in a new book of fairy tales, which Lady Dimsdale had that morning made him a present of.

‘Just listen to this, Auntie Laura,’ he said. She was always ‘Auntie Laura’ to the children.

“‘When the brave knight, Sir Tristram, entered the dungeon in which the unhappy Princess had been shut up for so long a time, he was about to spring forward and embrace her, when all at once the wicked magician stood before them, and with his wand drew a magic line across the floor. Then, although Sir Tristram and the Princess could see each other, neither of them could step over the magic line, which was like an invisible wall between them.’” Here Tommy looked up from his book. ‘Have you ever seen a wicked magician, Auntie Laura?’

‘One or two, dear,’ she replied with a faint smile. ‘Only, nowadays, one doesn’t always know them when one sees them.’

‘Don’t you think, auntie’—this in a whisper full of mystery—‘that if Sir Frederick had a long robe and a wand, he would look something like a magician?’

Lady Dimsdale shook her head and held up a warning finger; and Tommy went on with his book.

‘It was really very kind of you, Sir Frederick, to agree to stay with us for the rest of the week,’ remarked Mrs Bowood.

‘Madam, the pleasure is all on my side,’ replied the Baronet with his most courtly air.

It would appear that in the course of conversation the previous evening the Baronet had let out the fact that his own house was in the hands of the painters and whitewashers, and that he was rendered miserable thereby. Accordingly, very little persuasion had been needed to induce him to take up his quarters at Rosemount for the next few days. There may possibly have been other reasons also which made him not displeased to be on the spot.

‘We have very few visitors just now, as you are aware,’ resumed Mrs Bowood, ‘so that you must not expect to find us very lively.’

‘My dear madam, I abhor liveliness. Had your house been full of company, nothing would have induced me to stay. When in Arcady, I like to feel that I am an Arcadian. I like to feel that I am among cows, and buttercups, and

spring chickens—and—and home-cured bacon, and not among a mob of fine people from town. Hum, hum.'

Mrs Bowood smiled down at her work. Never was there a greater piece of artificiality in human form than the Baronet.

'Confound the flies!' exclaimed Captain Bowood irascibly to no one in particular, as he gave his bald head a sounding smack. 'Eh now?' he quoth inquiringly as he looked at the palm of his hand. 'No.'

'I wonder what can have become of Mr Boyd?' went on Mrs Bowood. 'He left the house early this morning, and has not been seen since.'

The movements of Mr Boyd in nowise interested Sir Frederick, but politeness demanded that he should say something. 'Gone for an early ramble, probably, before the day gets too warm.'

'I am dying to find out the writer of that anonymous letter.'

The Baronet coughed, and cut another page of his review.

'Auntie Laura, what is the matter with you?'

The question came so suddenly that Lady Dimsdale could not repress a slight start. 'The matter, dear?' she asked inconsequentially.

'You stop in the middle of a stitch, and then you put a finger to your lips, and then for a minute you seem as if you saw nothing. And you look so sad. Have you got the toothache, auntie?'

'Yes, dear, as you say—the toothache.'

'I am so sorry!'

'Or the heartache,' said Lady Dimsdale under her breath. 'Does it matter which?'

The Baronet deliberately shut up his review, and looking steadily at his hostess, said in a low voice: 'It was I who wrote the anonymous letter, Mrs Bowood.'

For once in a way, Mrs Bowood nearly pricked her finger. 'You, Sir Frederick!'

The Baronet inclined his head gravely. 'Only, I don't want the circumstance to be generally known.'

'I won't mention it for the world. But you do surprise me.'

'The facts are very simple. I met the real Mrs Boyd in New Orleans soon after her marriage. Later on, I found myself in Mexico. At a ball one evening, I saw among the crowd a lady whom I should certainly have addressed as Mrs Boyd, had not the friend with whom I was told me that she was that lady's twin-sister. The likeness between them was certainly a very remarkable one. The lady in question was married to a certain Don Diego Riaz, the owner of a large cattle-ranche a few miles away. The matter probably would have escaped my memory, but for a letter received by me a few months later, in which my friend made mention of a recent scandal in the household of Don Riaz. It seems that the señora suddenly disappeared. When found at the end of two days, and taken back home, her husband caused her to be branded on the palm of the left hand with the initials of his name.'

Mrs Bowood shuddered. 'How thankful I am that I don't live in Mexico!'

'Horray!' shouted Master Tommy. 'Brave Sir Tristram has chopped off the wizard's head.'

The flies were still pestering Captain Bowood. 'Another of 'em!' he exclaimed as he slapped his forehead for the second time. Then he looked at his hand. 'What—what? No,' he said in a tone of disappointment.

Sir Frederick resumed the equable flow of his narrative. 'A few months later, Don Diego was found dead under somewhat mysterious circumstances. Such things do happen in Mexico now and then. There was a dim suspicion in my mind, I hardly know why, that one sister might be trying to pass herself off as the other, when I sought an interview with the supposed Mrs Boyd yesterday. That suspicion was strengthened by her answers to some of my questions, and was reduced to a certainty when I got sufficiently near to her to perceive the tiny brown mole under her chin, which I remembered having been told was the one distinctive mark between the two sisters; and further, when I noticed how—although she had her gloves on at the time I spoke to her—she had got into the way of keeping her left hand tightly shut, as though she held something inside it which she

was unwilling that any one should see. It was the certainty thus arrived at which induced me to write as I did to Mr Boyd.'

'A romance in real life! I presume that Mr Boyd had never seen the twin-sister before?'

'Never, so far as I am aware.'

'She was certainly a very strange person, Sir Frederick, and I am not sorry that she is gone. I trust there is no likelihood of her coming back?'

'I don't think you have much to fear on that score,' responded the Baronet drily.

Master Tommy shut up his book with a bang. 'And now Sir Tristram and the Princess are married, and are going to live happy ever after. The brave knight and the forlorn Princess always do get married; don't they, aunty?'

'Not always, dear. Sometimes the spells of the wicked wizard are too strong for them.'

'Oh, I say! that is a shame.—What a pretty butterfly!' His perch on the swing was vacated next moment, and, cap in hand, he was off in pursuit.

'A boy all over,' murmured Lady Dimsdale. 'Something to chase, something to crush!'

'Laura, whatever are you about?' said Mrs Bowood with a little elevation of her ordinary tones. 'You might favour us with your company during the short time longer you have to stay.'

'I've got the shadiest seat in the garden,' was the answer that came back from behind the evergreens; 'and just now I'm engaged on an intricate detail of millinery, and must on no account be disturbed.'

Sir Frederick had pricked up his ears. 'Is Lady Dimsdale going away?' he asked.

'Did you not know? She had letters this morning—so she says—which necessitate her immediate return home. I am quite angry with her.'

'Ah, ah! nearly had you that time,' exclaimed the Captain, after another abortive attempt to slaughter one of his tormentors.

Sir Frederick rose and crossed to where Lady Dimsdale was sitting. 'You are busy this morning, Lady Dimsdale,' he said.

'Extremely so. This young person was no longer fit for decent society, so I have taken her in hand, and am trying to make her presentable. But you don't understand millinery, Sir Frederick.'

'My misfortune.'

'It is a pity. But, as a rule, your sex are very ignorant.'

'You are about to leave us, Mrs Bowood tells me.'

'Yes; the three o'clock express will carry me away to "fresh woods and pastures new."'

'I am grieved to hear that.'

'Is Sir Frederick Pinkerton ever really grieved about anything?' There was a certain scornful ring in her voice as she asked this question.

Sir Frederick bit his lip. His sallow cheeks flushed a little.

At this moment, there came an interruption. Miss Lucy ran up with red face and dishevelled hair, swinging her straw hat by its ribbons. 'I've been such a long way, aunty, and I'm so tired!'

Lady Dimsdale was examining her fingers and pinafore with serious face. 'O Lucy!' was all she said.

'I couldn't help it—really, I couldn't. Strawberries and cream—such a lot!—with Mr Boyd at the Meadow Farm.'

'With Mr Boyd!' said Lady Dimsdale in a low voice.

'Yes. I met him in the garden ever so early, and he said he was going for a walk, and would I go with him. So I went, and it was ever so jolly. But'—with a yawn—'I'm so hot and tired!'

Lady Dimsdale gave her the doll.

'O you beauty! How smart Aunt Laura has made you!' she cried in an ecstasy of admiration. Then she sat down on a low stool close to Lady Dimsdale, and forgot for a little while that she was either hot or tired.



‘I have fulfilled my promise, Lady Dimsdale,’ said the Baronet in a low voice. ‘That woman will never trouble Mr Boyd again.’ He looked meaningfully at her as he spoke.

It was a look which she understood. ‘Sir Frederick Pinkerton need be under no apprehension,’ she replied, gazing steadily into his eyes. ‘I have not forgotten my part of the bargain. That which I have promised I will perform.’

The Baronet bowed a little stiffly, and strolled slowly back towards Mrs Bowood.

‘Don’t you think, Aunt Laura,’ said Lucy, ‘now that Dolly is so smart, I might take her to church with me? If it’s good for me to go to church, it must be good for Dolly.’

But Lady Dimsdale heard her not. ‘My promise! Yes, whatever it may cost me, I must not forget that.’ She kept repeating the words to herself again and again.

Lucy, for once, finding her chatter unheeded, made a pillow of one arm for her doll, laid her head against Lady Dimsdale’s knee, and two minutes later was fast asleep.

Along one of the winding pathways came Oscar Boyd, dusty with the dust of country roads, but bright and happy-looking as the day. ‘Good-morning, Mrs Bowood.—Good-morning, Sir Frederick.—Any news, Captain?’

‘We thought that some one had run away with you,’ said his hostess, as she extended her hand. ‘What have you been doing with yourself all this time?’

‘We have been over the hills and far away, Miss Lucy and I. Our object was strawberries and cream at the Meadow Farm.’ He gave a quiet glance round. ‘Laura not here?’ he said to himself.

‘Strawberries and cream. Humph!’ remarked the Captain. ‘S. and B. far better on a morning like this. Come now.’

Oscar had discovered Lady Dimsdale’s whereabouts by this time, and crossed towards her.

‘Now for the scene!’ said Sir Frederick to himself as he watched him go. Then turning to Mrs Bowood, he said: ‘With your permission, I will go and

smoke a cigarette on the terrace.'

'You will find it very hot on that side of the house.'

'The heat suits me, madam. If I may be allowed such an expression—I revel in it.' Then as he walked away, he said to himself: 'How will she break the news?'

Mrs Bowood had not failed to note in what direction Mr Boyd had vanished. 'After all, they may perhaps make a match of it,' was the thought in her mind. 'I do hope he will propose before Laura goes.'

'Here you are! I was just wondering what had become of you,' said Oscar, as he drew up a garden-chair and sat down near Lady Dimsdale.—'My little sweetheart and asleep?' he added with a smiling glance at the unconscious Lucy.

'She was tired with the long walk.'

Something in Lady Dimsdale's voice struck him. He looked fixedly at her. Probably he expected to see in her some traces of the same change that he felt in himself—the change from despair to gladness, from a midnight of blackest gloom to a dawn of radiant hopes, rich with the sweet promise of happy years to come. But no such traces were visible in the woman who sat before him with pallid, long-drawn face, with downcast eyes, round which the dark circles left by sleeplessness or tears—perhaps by both—were plainly to be seen, and with thin white hands that visibly trembled as, clasped in each other, they lay idly on her lap. It was unaccountable.

'You have heard of all that happened yesterday?' he presently remarked. 'You know that that woman was an impostor?'

'Yes; I have heard.'

'Her likeness to her sister was extraordinary. I was completely deceived.'

'She will not trouble you again?'

'Hardly so, I think. I have arranged for a friend of mine to see her on board ship to-morrow, and to pay her passage back to the port from which she sailed. I have an idea that I ought to thank Sir Frederick Pinkerton for the anonymous letter which served to unmask her.' He drew his chair a little

closer. 'Laura! you have not forgotten yesterday morning?' he said as he bent forward and tried to gaze into her eyes.

'No; I have not forgotten.' The reply was so low that he could scarcely hear it, and the eyes were kept persistently cast down.

'You know how we were interrupted,' went on Oscar. 'A black cloud came between us, and we thought our happiness was wrecked for ever. But the cloud has vanished, and the sun shines out as brightly as before, and'——

'Oscar, we must—both of us—try to think of yesterday morning as if it had never been.'

He drew himself upright in his chair with a great gasp; for a moment or two he was too stupefied to speak. 'Try to think of yesterday morning as if it had never been! Impossible! But why try to do so?'

'Because something has happened since then which makes it imperative that we should do so.'

'Something happened! I don't understand. I only know that you agreed to become my wife. What can have happened to alter that?'

'You must not ask me, and I cannot tell you.'

'And you ask me to agree to this without a word of explanation?'

'Yes, without a word of explanation.' There was a quaver in her voice as she said these words which he did not fail to detect.

He sat like a man stunned—like one who has heard some tidings of import greater than his mind is able to grasp. 'Laura! you torture me,' he said at length.

At this she raised her dark, grief-laden eyes, and gazed at him for a moment or two with a sort of dumb, pathetic tenderness, while at the same time the fingers of one hand wandered caressingly over his sleeve.

He was profoundly moved. He rose from his chair, and took a turn or two in silence, and then resumed his seat. 'Send for the nurse to take away that child,' he said, 'and then come with me for a walk in the shrubbery.'

'Oscar, I dare not.'

'You dare not! Why?'

‘I dare not. We had better say farewell here and now, than later on and before others.’

‘Farewell!’

‘I leave here by the afternoon express. Oscar, after to-day, you and I must never meet again.’

He started to his feet. ‘Never meet again! But—— Why—— Can you who say this to me be the same woman whom I kissed but yesterday?’

‘I am that woman; how happy then, how unhappy now, no one but myself can ever know!’

‘Then why this change? What strange mystery is here?’

‘I cannot tell you. My lips are sealed. Believe me, Oscar, we had better say farewell here and now.’

‘I cannot and I will not say farewell!’ he passionately exclaimed. ‘You belong to me, and I belong to you; that kiss was the seal and consecration of our union. No earthly power shall keep us asunder. There is some strange mystery at work here. If you will not give me the key to it, I must try to find it for myself.’ He lifted his hat, stooped and pressed his lips to her hair, and then, without another word, he plunged into the shrubbery.

Laura gazed after his retreating figure through a mist of tears. ‘The key to the mystery!’ she murmured. ‘You may try your best to find it, my poor Oscar, but Merlin’s enchantments will prove too strong for you to overcome.’

## A PEEP AT THE FALKLAND ISLANDS.

EXCEPT to mariners who have rounded Cape Horn, this solitary group of islands is a veritable *terra incognita*. Seldom visited, however, as the Falkland Islands have been in the past, their isolation promises to be yet more complete in the future, as soon as an inter-oceanic canal diverts commerce from the old to a new route. Up to the present time, they have served as a half-way house for sailing-vessels on their voyage round Cape Horn in need of provisioning, or for refitting such as have been disabled by the tempestuous weather which for a great part of the year prevails in those latitudes. It appears probable, however, that their usefulness for even these purposes is nearly at an end, and that their lonely inhabitants are doomed, like the surviving innkeepers of coaching-days, to pass the remainder of their lives in mourning over the memories of the past.

These islands have at various times belonged to France and to Spain; but since 1833, when they were annexed by the English government for the protection of the whale-fishery, they have formed part of the British possessions. The group consists of the islands of East and West Falkland, and upwards of a hundred others—mostly mere islets or sandbanks—which have a united area of nearly five million acres. The only settlement or town—if it may be dignified with that name—is Stanley, which is situated on a gentle slope of moorland bordering upon a narrow and nearly land-locked harbour in the island of East Falkland; but few of the houses in Stanley are well constructed, and these are occupied by the governor and colonial officers and a few successful traders. The remainder are rough-and-ready specimens of architecture, in the construction of which the timber of many an old shipwrecked hulk has been utilised. The climate, though generally damp, is extremely healthy, but very changeable. To-day, perhaps the sun may be shining, the air clear and exhilarating; but to-morrow you rise at daybreak, look out at the same landscape, and behold what a change is there! A thick driving mist has rolled in from the ocean, and enveloped all nature in its moist and chilly embrace. The soil is more adapted to pasturage than to cultivation, being similar in its character to the unreclaimed wild lands of northern Scotland and the Orkney and Shetland Islands. Large

herds of wild cattle roam at will over the country, but are worth little except for their hides, there being no market for the beef. The greater portion of these cattle belong to the Falkland Islands' Company, who own a marine store and general outfitting establishment at Stanley. This Company, a few years ago, embarked in sheep-raising, by way of an experiment, importing some common stock from Patagonia, and crossing them with cheviots. The experiment has proved a great success, and sheep-raising now forms the principal industry of the later settlers; several young Englishmen, with a few hundred pounds capital, having within the last few years settled on the islands for this purpose, their 'stations' ranging from twenty to one hundred and fifty thousand acres, the aggregate value of the wool annually exported to England amounting to nearly fifty thousand pounds sterling.

There being no roads or vehicles for internal traffic, as most of the country round Stanley is a huge morass, the owners of these sheep-stations are obliged to keep small sailing-vessels in which to visit Stanley for provisions, or send their wool there for shipment to England.

In respect of scenery, it cannot be said that nature has bestowed gifts on the Falklands with a too lavish hand. There is but one tree in the entire islands, and that solitary exception attempts to grow in the governor's garden at Stanley, where it is protected by a wall from the cutting south wind, which ruthlessly nips off any ambitious shoot which presumes to peep over its restricted limits.

The population of the Falklands in 1877 was a little over thirteen hundred, nearly three-fourths of that number being males. Most of the inhabitants are English; but there are also a few Americans and Spaniards, the latter being the surviving descendants of the former masters of the islands. The government is vested in a Governor, aided by an Executive Council and a Legislative Council, both appointed by the Crown. The majority of the working inhabitants are fishermen, whose chief sources of profit are derived from annual visits to the New Shetland Islands, about six hundred miles south from Cape Horn, and to other breeding-grounds in the Falkland Islands, to hunt for seals and penguins, which are slaughtered in large numbers for their skins and oil.

The breeding-grounds or 'rookeries' of the penguins are generally situated in the shelter of some land-locked bay or break in the line of steep and

rugged cliffs; and often occupy several acres, which are laid out, levelled, and divided into squares, with intervening streets, the whole as if done at the dictation of a surveyor. Along these streets, the penguins gravely waddle on their way to and from the water, presenting the appearance of squads of awkward recruits, or a still more striking likeness, as has been often remarked, to troops of little children toddling along in their white pinafores. They build no nests; but lay a single egg in some selected spot, the incubation being equally shared by male and female. Although so closely allied to the feathered kind, they are unable to fly, nature having only furnished them with short stumpy apologies for wings, resembling the flippers of a turtle, by means of which they are enabled to attain prodigious speed, when diving under water in pursuit of fish for food. Penguins, as well as seals, are doubly provided against the cold of the high latitudes which they frequent, by a layer of fat immediately inside the skin, which is also the depository of the oil extracted by the fishermen. In landing to attack and slaughter them in their rookeries with clubs and boat-stretchers, stealthy precautions are quite unnecessary, the poor dumb creatures looking on in a state of indifferent stupidity, without making any attempt to escape, whilst their companions are being knocked on the head all around them. Seal-hunting, or 'fishing' as it is usually termed, on the contrary, requires great skill and patience. Seals are gregarious as well as polygamous, and when they forsake the open seas for their breeding-places on shore, are very shy of intrusion, and take great care to insure the safety of their retirement, particularly in localities which have been previously visited by human beings. They invariably post sentinels on every commanding point, so that it is only by patient waiting and under cover of night the hunters are enabled to elude their vigilance and surprise them.

The hunting or fishing season being over, the fishermen return to Stanley with their harvest of skins and oil, which they sell to the traders, who, as may be imagined, buy at their own price, and eventually get the lion's share of the profits. Not that this appears to bother the minds of the fishermen, who are a happy-go-lucky set of men, and by no means provident in their habits. When I was serving in the English squadron on the south-east coast of America, we visited the Falkland Islands as a rule once a year, and the admiral usually timed our departure from Monte Video so as to arrive there somewhere about Christmas. As soon as we were sighted by the lookouts, all was flutter and excitement in the settlement. The married ladies were

soon elbow-deep in pie-crust and confectionery; while the only single lady in the colony commenced practising her most sentimental songs, and hunting up old bits of finery to set off her mature charms, with a grim determination to capture the maiden affections of some susceptible young naval officer.

For those of our number to whom shooting and fishing offered more attractions than did the allurements of female society, the Falkland Islands afforded a fine field. The tyro whose sole ambition is a pot-shot at a standing object, may revel there in unequalled opportunities of distinguishing himself, for, except in the vicinity of the settlement, the upland geese are so little, if at all, accustomed to the sight of man, that they show no signs of fear or flight at his approach, and consequently fall an easy prey to the young sportsman. But there are other kinds of game which give excellent sport to older hands. Several species of duck and teal, abundance of snipe, and an occasional swan, will give the hunter who can hold his gun straight a satisfactory bag—and a weighty one too, if he has to carry it. Moreover, if he be ambitious, and has at times indulged in wild dreams of slaying the king of beasts in his forest lair, he may console himself for not having done so, by killing that animal's degenerate marine cousin, the sea-lion. I myself once very nearly did; that is to say, I came as near to doing so, as a sea-lion did to making an end of me. It happened in this way. A party of us had pulled in a boat up a small river in West Falkland, which, at some distance from its mouth, opened into a lake with an islet in the centre, upon the shelving shore of which we beached our boat, for lunch. This islet was covered with patches of tall tussac grass—a favourite haunt of sea-lions—but appeared to be perfectly desolate and devoid of animal life. While sauntering idly along, smoking my pipe, I was suddenly roused from a reverie by the most horrible roar, proceeding as it seemed to me from the very ground under my feet; and lo! from a bunch of tussac grass through which I was forcing my way, there arose an immense, savage-looking animal, with a row of most formidable tusks, and confronted me. I was so taken aback at my close and unexpected proximity to such a monster, that I confess my first thoughts were in favour of an ignominious flight, had not my enemy anticipated me by turning tail himself. Gnashing his teeth with a parting roar, he half-waddled and half-rolled down the bank and into the water, while I was desperately pulling at



the trigger of my gun, forgetting in my agitation that it was only at half-cock.

Having nearly exhausted all that the Falklands present in the way of interest or pleasure, we now say our adieus, weigh anchor and put to sea.

## MISCHIEF DONE BY GOOD-NATURED PEOPLE.

No doubt there is a vast amount of misery in the world occasioned by deliberate unkindness; revenge for real or fancied injuries, or the terrible pleasure some evil natures feel in the exercise of arbitrary power. Still more suffering is probably occasioned by that callous indifferentism to the feelings of others which we call thoughtlessness, but which is really very nearly allied to selfishness. Yet possibly we should find, were we able to make the reckoning, that as much harm is done by the unwise concessions of what are called 'good-natured people,' as by either of the other classes.

It is often said of a good-natured man that he is no one's enemy but his own; but families and friends are so linked together in this world, that it is exceedingly difficult for any one to injure himself without hurt to another. Far be it from us to limit philanthropy or any sort of generosity. He who goes through life conferring benefits is the noblest of mortals; but unless on occasion he is able to say 'No' to eager entreaties, he will never be able to carry out his best intentions.

One of the most mischievous forms of what is called good-nature is recommending an incompetent person to some responsible situation. Not that patronage, properly considered, is anything but a good and lawful thing; only we may be very sure that the just, enlightened, and really powerful patron is by no means what is understood by 'a good-natured man.' We imagine him to have legitimate influence, which he would very soon lose were he to abuse it.

We once knew an authoress, now no more, who, besides having a great deal of talent as well as good-nature, had one of the kindest hearts in the world. Her successful books had secured her a certain literary position; and had she used sparingly and discreetly the influence which naturally resulted from it, she might have been of immense use to young aspirants of genius. Perhaps her own vivid imagination lent a charm to the manuscripts she was asked to forward for unknown authors to eminent publishers, for it is a fact that men and women of real genius are often the most lenient of critics to

inferior writers. But however this may have been, her good-nature was so often imposed on, she so often sent poor compositions with words of recommendation to her friendly publishers, that at last they smiled, or sighed, at her importunities, and though willing enough to take anything from her own practised pen, ceased to regard her good word as of any weight, when applied to the productions of another. In fact, it came to pass that it was rather an injury than otherwise to be introduced by Mrs E——. She sacrificed what might have been a very useful and powerful influence to her good-nature. If Dr Johnson had thus sacrificed his great influence by offering poor novels to the booksellers, he would have been little likely to have been able to promptly dispose of the immortal *Vicar of Wakefield*, and so aid poor Oliver Goldsmith in the hour of his sorest need.

Critics who, from a spurious good-nature, unduly praise a work of art or literature, really do a cruel injury to deserving authors and artists, by bringing their merits into an unworthy comparison with inferior powers. Evil of this sort, however, is apt to bring about its own penalty. Directly a professional writer is even suspected of unfairness, the spell of his influence is broken; and often enough, to be a warning to the ready writer, has it happened that one of the staff of a popular journal has lost his situation on account of his too ‘good-natured’ reviews.

It is rather remarkable that what are called good-natured people rarely undertake unpleasant duties, if they can possibly avoid them. They do not like telling disagreeable truths, however urgent the necessity for so doing, but transfer the mission to a sterner friend with some such phrase as, ‘I should not like to say it,’ or, ‘I should not like to do it,’ just as if the habit of their lives was only to do what they ‘liked.’ Indeed, the good-natured people we are describing are rarely generous in a grand way; they are seldom capable of self-sacrifice. If they are rich, they give money rather than take trouble. If they are people of leisure, they probably give time, which perhaps is not very precious to them; but doing something they greatly dislike, in order to benefit another, is a virtue too rare to be found among them.

There is a form of deception, too often considered very venial, with which so-called good-natured people, if they are good letter-writers, are not seldom associated. This is ‘drawing up’ letters for their less gifted acquaintances to copy and send out as their own. A really good letter often

makes a very favourable impression; but it is something like a false coin if it be not the composition of the signer. No doubt, there are cases when it is necessary some statement should be made in language more clear and precise than the person concerned can command; but in these instances, the ready penman should write in his own person for his friend. We are afraid many situations of trust and responsibility have been obtained on the strength of admirable letters dictated by another. But incompetence is sure to be discovered sooner or later, as is a deception which is less forgivable than want of ability. Long, long ago, we knew of a case far more sad than the engaging of an incompetent clerk or governess. A girl of good family and large fortune was won over to accept for a husband a young gentleman of small means and not much principle, mainly by the eloquent, poetical, very charming letters he addressed to her; nearly if not quite all of which were composed by a clever brilliant friend who had never even seen her. When the marriage proved very far from a happy one—and the real scribe had a wife and children of his own—we have reason to believe that he deeply regretted the part he had played in deluding a confiding girl.

Very much on a par with the laxity of principle which permits false letter-writing is the wearing of borrowed finery, especially jewellery, things which we have known good-natured women very willing to lend. Valuable jewellery is a sign of a certain amount of wealth, which is generally on fit occasions displayed; but to exhibit the sign where the reality does not exist is a mean sort of deception, which must often be followed by humiliation.

A person out of what is called good-nature becoming security for another, and suffering, or causing others to suffer in consequence, is so sad and frequent an event in real life, that it has become quite a common incident in novels, and need not be treated of here. Kindness of heart is a deeper and finer quality than the surface readiness to oblige which we have endeavoured to depict. Kindness of heart has always the capacity for real sympathy, and this great alleviator of suffering is generally too clear-seeing to always approve of 'Yes' when 'No' should be said. Real sympathy feels with, and assists, the friend in trouble. When actions prompted by thoughtless good-nature are most mischievous, they proceed from one who probably neither feels deeply nor sees clearly the relations of cause and effect. That Justice—to a stranger no less than to our associates—is a rarer

and more sublime virtue than generosity, is a truth that good-natured people are somewhat apt to forget.

## SIX LITTLE WORDS.

SIX little words arrest me every day:  
I *ought, must, can*—I *will, I dare, I may*.  
I OUGHT—'tis conscience' law, divinely writ  
Within my heart—the goal I strive to hit.  
I MUST—this warns me that my way is barred,  
Either by Nature's law or custom hard.  
I CAN—in this is summed up all my might,  
Whether to do, or know, or judge aright.  
I WILL—my diadem, by the soul imprest  
With freedom's seal—the ruler in my breast.  
I DARE—at once a motto for the seal,  
And, dare I? barrier 'gainst unlicensed zeal.  
I MAY—is final, and at once makes clear  
The way which else might vague and dim appear.  
I *ought, must, can*—I *will, I dare, I may*:  
These six words claim attention every day.  
Only, through Thee, know I what, every day,  
I ought, I must, I can, I will, I dare, I may.

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## FOOTNOTES

[\[1\]](#) We may here refer to the provision of the Acts passed to facilitate the administration of estates under three hundred pounds. Information as to the simple and inexpensive mode of procedure in such cases can be obtained by application to the sheriff-clerks in Scotland, or to the Inland Revenue authorities in England.

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